

ideo consideratum est quod predicti Joh' Walweyn et Henr' Picard onerentur versus dominum Regem, &c. and were charged to satisfy the King all the money which the King had paid for the said William Porter. And (c) although none of the King's treasure came to their hands; nor had they any private benefit by any matter that appeared in the said case, yet because they were means and causes of the King's loss and damage, they were by judgment charged to the King: and forasmuch as they were chargeable by the law, in that case, if they had died before judgment against them, without question their executors, &c. should be charged; for where the testator is by law chargeable to satisfy the King for loss or damage done to him, his death shall not dispense with it, but his executors, &c. shall be charged to the King (A). And it was resolved, that in the said case, the Queen (d) either might charge the executors of Sir Walter, or those who made such unlawful warrant at her election. And a judgment was cited in the argument of this case *de termino* Trin. anno 24 Ed. 3. Rot. 4. in the Exchequer. One (e) Walter de Chirton, the King's Customer, had purchased certain lands with the King's money, and by covin had caused the vendor to enfeof his friends in fee to defraud the King, and nevertheless took the issues and profits of the land to his own use, and those lands by inquisition were returned [93 a] with the values into the Exchequer, and there by judgment were seised into the King's hands, *quousque*, &c. and yet the estate of the land was never in him. But he who intends to deceive the King of that which belongs to him, will, in the end, deceive himself. *Vide*, reader, where and how the King shall levy the sum of which any one is chargeable to him by the law, not only against the party himself, his lands and goods in his own hands, but in the hands of his heirs, assigns, executors, or administrators; and if he has no executors or administrators, then in the hands of the possessors of the goods of the deceased, to render an account to the King, &c. And for that *vide* a notable record in *Scaccario de Term. Mich. anno 24 E. 3. Rot. 11. ex parte rememoratoris Regis, Thomas (a) Favel's case*, which was an Exchequer Chamber case, by all the justices and Barons, and vouched by the Lord Dyer, 4 & 5 Phil. and Mar. 160. Pasch. 2 Eliz. Rot. 111. (b) *Sir William Cavendish's case*, and reported by the Lord Dyer, 5 Eliz. 225. Plow. Com. in the case of *Mines*, 321 a. and b. *Vide* 50 Ass. pl. 5.

And afterwards the executors of the said Earl of Devonshire satisfied the King for all the said iron ordnance, shot, or munition, which he, without warrant, had converted to his use.

[93 b] JAMES BAGG'S CASE.

Trin. 13 Jac. 1. Rot. 23.

In the King's Bench.

The cause of disfranchising a citizen, freeman, or burgess, ought to be grounded upon an Act which is against the duty of a citizen or burgess, and against the public good of the city or borough whereof, &c. and against his oath, which he took when he was sworn a freeman of the city or borough: but words of contempt, or *contra bonos mores*, although against the chief officer or his brethren, are not good causes of disfranchisement, nor are endeavours, &c. to do a thing against the duty or trust of his freedom.

No freeman of any corporation can be disfranchised by the corporation, unless they have authority to do it, either by the express words of the charter, or by prescrip-

(c) 3 Keb. 592.

(A) Rolle, in his Abridgment, Vol. II. p. 161, cites this case: but adds "*mes quere ceo.*" *Vid.* Vin. Ab. Prer. N. pl. 7.

(d) 2 Roll. 161. Moor 476.

(e) 12 Co. 3. Lane 48. 108. Godb. 293. 299. 1 Vent. 132. 3 Co. 12 b. 2 Roll. Rep. 296, 297. 303. 334. 2 Inst. 19. Dyer 160. pl. 41. 225. pl. 32, 33. 295. pl. 10. 2 Roll. 156. 1 Vent. 132. Vin. Ab. Prer. B. Sugd. Vend. 598. 6th ed.

(a) Godb. 292. 2 Roll. Rep. 300.

(b) 3 Co. 12 b. Plowd. 321 a. Godb. 292. 297. 2 Roll. Rep. 300. 302. Hard. 25, 26. 8 Co. 171 a.